

SiyaBusa ERP

MASTER SERVICES AGREEMENT

Legal Documents

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal

Classification: Confidential

WE RULE. WE GOVERN. WE EMPOWER.

ENTERPRISE CONTRACT

Comprehensive master services agreement template for enterprise customers.

Master Services Agreement (MSA)

Effective Date: January 1, 2026

Version: 1.0

Agreement Cover Page

Field	Value
Agreement Number	MSA-[YEAR]-[NUMBER]
Customer Legal Name	[Customer Name]
Customer Registration	[Company Registration Number]
Customer Address	[Address]
Effective Date	[Date]
Initial Term	[X] years

Master Services Agreement

This Master Services Agreement ("Agreement" or "MSA") is entered into as of the Effective Date between:

Masaphokati Technologies (Pty) Ltd

Registration No.: [Company Registration Number]

Address: [Address], South Africa

("Provider" or "Masaphokati")

AND

[Customer Legal Name]

Registration No.: [Customer Registration Number]

Address: [Customer Address]

("Customer")

Each a "Party" and collectively the "Parties".

Recitals

WHEREAS:

A. Provider develops and operates the SiyaBusa ERP cloud-based enterprise resource planning software service.

B. Customer wishes to subscribe to and use the Service for its business operations.

C. The Parties wish to establish the terms and conditions under which Provider will provide the Service to Customer.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the Parties agree as follows:

1. Definitions and Interpretation

1.1 Definitions

In this Agreement, unless the context otherwise requires:

Term	Definition
Affiliate	Any entity that controls, is controlled by, or is under common control with a Party
Authorized User	An individual authorized by Customer to access and use the Service
Confidential Information	Information disclosed by one Party to the other that is marked confidential or would reasonably be understood to be confidential
Customer Data	All data, content, and information uploaded, entered, or processed through the Service by or on behalf of Customer
Data Processing Agreement	The agreement governing the processing of personal information, attached as Schedule B
Documentation	User guides, technical documentation, and specifications for the Service
Effective Date	The date specified on the cover page
Fees	The charges payable by Customer for the Service as specified in an Order
Force Majeure Event	An event beyond a Party's reasonable control, including natural disasters, war, terrorism, labor disputes, and government action
Intellectual Property Rights	All patents, copyrights, trademarks, trade secrets, database rights, and other intellectual property rights
Order	A document executed by the Parties specifying Services, Fees, and other terms
Personal Information	Information as defined in the Protection of Personal Information Act, 2013 (POPIA)
Service	The SiyaBusa ERP software-as-a-service platform and related services
Service Level Agreement	The agreement specifying service levels, attached as Schedule C
Subscription	Customer's right to access and use the Service for the Subscription Term
Subscription Term	The period during which Customer has access to the Service, as specified in an Order

1.2 Interpretation

1.2.1 Headings are for convenience only and do not affect interpretation.

1.2.2 References to "including" mean "including without limitation".

1.2.3 References to legislation include amendments and successor legislation.

1.2.4 References to persons include legal entities.

1.2.5 Schedules form part of this Agreement.

2. Services

2.1 Service Provision

2.1.1 Provider shall provide the Service to Customer in accordance with:

- This Agreement
- Applicable Orders
- The Service Level Agreement
- The Documentation

2.1.2 Provider shall use commercially reasonable efforts to make the Service available 24 hours a day, 7 days a week, subject to the Service Level Agreement.

2.2 Service Orders

2.2.1 Customer may order Services by executing an Order with Provider.

2.2.2 Each Order shall specify:

- The Services and modules included
- The number of Authorized Users
- The Subscription Term
- The Fees payable
- Any additional terms

2.2.3 Orders are incorporated into and governed by this Agreement.

2.3 Service Modifications

2.3.1 Provider may update, modify, or enhance the Service from time to time.

2.3.2 Provider shall provide reasonable notice of material changes.

2.3.3 Provider shall not materially reduce the functionality of the Service during a Subscription Term without Customer's consent.

2.4 Support Services

2.4.1 Provider shall provide support services as specified in the Service Level Agreement.

2.4.2 Support includes:

- Technical assistance via email, chat, and phone (per plan)
 - Bug fixes and error corrections
 - Access to Documentation
 - Software updates and upgrades
-

3. Customer Obligations

3.1 Acceptable Use

3.1.1 Customer shall use the Service only for lawful business purposes and in accordance with the Documentation.

3.1.2 Customer shall not:

- Use the Service to process data for third parties without authorization
- Sublicense, resell, or share access to the Service
- Attempt to reverse engineer or decompile the Service
- Introduce malicious code or interfere with the Service
- Exceed the authorized number of Users or usage limits

3.2 User Management

3.2.1 Customer is responsible for:

- Managing Authorized User accounts
- Ensuring Users comply with this Agreement
- Maintaining the confidentiality of login credentials
- Promptly deactivating accounts of former employees

3.2.2 Each User account is for a single individual and may not be shared.

3.3 Data Responsibilities

3.3.1 Customer is responsible for:

- The accuracy, quality, and legality of Customer Data
- Obtaining necessary consents for personal information
- Maintaining appropriate backups of critical data

- Ensuring Customer Data does not infringe third-party rights

3.4 Compliance

3.4.1 Customer shall comply with all applicable laws and regulations in its use of the Service, including:

- Protection of Personal Information Act (POPIA)
 - Tax laws and SARS requirements
 - Industry-specific regulations
 - Export control laws
-

4. Fees and Payment

4.1 Fees

4.1.1 Customer shall pay the Fees specified in each Order.

4.1.2 All Fees are:

- Quoted in South African Rand (ZAR)
- Exclusive of VAT unless stated otherwise
- Non-refundable except as expressly provided

4.2 Invoicing and Payment

4.2.1 Provider shall invoice Customer in accordance with the payment terms in the Order.

4.2.2 Payment is due within 30 days of invoice date unless otherwise specified.

4.2.3 Late payments shall bear interest at 2% per month.

4.3 Taxes

4.3.1 Customer is responsible for all applicable taxes except Provider's income taxes.

4.3.2 Provider shall add VAT at the prevailing rate to all invoices.

4.3.3 Customer shall provide valid tax documentation upon request.

4.4 Fee Adjustments

4.4.1 Provider may adjust Fees upon renewal with 60 days' notice.

4.4.2 Fee increases shall not exceed 10% annually unless:

- Agreed by Customer, or
- Required by regulatory changes, or
- Exceptional circumstances apply

4.5 Disputed Invoices

4.5.1 Customer must notify Provider of any invoice dispute within 14 days.

4.5.2 Undisputed amounts remain payable while disputes are resolved.

5. Intellectual Property

5.1 Provider's Intellectual Property

5.1.1 Provider owns all Intellectual Property Rights in and to:

- The Service
- Documentation
- Provider's methodologies, tools, and know-how
- Improvements and modifications to the above

5.1.2 This Agreement does not transfer any ownership of Provider's Intellectual Property to Customer.

5.2 License Grant

5.2.1 Subject to this Agreement, Provider grants Customer a non-exclusive, non-transferable license to:

- Access and use the Service during the Subscription Term
- Use the Documentation for internal purposes
- For the number of Authorized Users specified in the Order

5.2.2 The license is limited to Customer's internal business purposes and does not include any right to sublicense.

5.3 Customer Data

5.3.1 Customer retains all rights to Customer Data.

5.3.2 Customer grants Provider a limited license to use Customer Data solely to:

- Provide the Service
- Comply with legal obligations
- Generate anonymized, aggregated statistics

5.3.3 Provider shall not use Customer Data for any other purpose.

5.4 Feedback

5.4.1 Customer may provide suggestions, feedback, or ideas regarding the Service ("Feedback").

5.4.2 Provider may freely use Feedback without obligation to Customer.

6. Confidentiality

6.1 Confidential Information

6.1.1 Each Party agrees to:

- Protect the other Party's Confidential Information
- Use Confidential Information only for purposes of this Agreement
- Not disclose Confidential Information to third parties except as permitted

6.1.2 Confidential Information includes:

- Customer Data
- Provider's technology and business information
- The terms of this Agreement

6.2 Permitted Disclosures

6.2.1 A Party may disclose Confidential Information:

- To employees, contractors, or advisors who need to know, subject to confidentiality obligations
- As required by law (with notice if permitted)
- With the other Party's written consent

6.3 Exclusions

6.3.1 Confidentiality obligations do not apply to information that:

- Is or becomes publicly available without breach
- Was known prior to disclosure
- Is independently developed without use of Confidential Information
- Is received from a third party without confidentiality restrictions

6.4 Duration

6.4.1 Confidentiality obligations survive termination for 3 years, except:

- Trade secrets remain protected indefinitely
 - Personal information remains protected as required by law
-

7. Data Protection

7.1 Data Processing

7.1.1 Provider processes Customer Data as an operator (processor) on Customer's behalf.

7.1.2 Customer remains the responsible party (controller) for Customer Data.

7.1.3 The Data Processing Agreement (Schedule B) governs the processing of Personal Information.

7.2 POPIA Compliance

7.2.1 Both Parties shall comply with the Protection of Personal Information Act (POPIA).

7.2.2 Provider shall:

- Process Personal Information only on Customer's documented instructions
- Implement appropriate technical and organizational security measures
- Notify Customer of data breaches without undue delay
- Assist Customer with data subject requests

7.3 Data Location

7.3.1 Customer Data is stored in South Africa (AWS Cape Town region).

7.3.2 Provider shall not transfer Customer Data outside South Africa without Customer's consent, except:

- Where necessary for technical operations
- Where adequate safeguards are in place

7.4 Data Security

7.4.1 Provider shall implement and maintain appropriate security measures, including:

- Encryption of data at rest and in transit
- Access controls and authentication
- Regular security assessments
- Incident response procedures

7.5 Data Return and Deletion

7.5.1 Upon termination:

- Customer may export Customer Data for 90 days
 - After 90 days, Provider shall delete Customer Data
 - Provider may retain data as required by law
-

8. Warranties

8.1 Provider Warranties

8.1.1 Provider warrants that:

- It has authority to enter into this Agreement
- The Service will perform materially as described in the Documentation
- Services will be provided with reasonable skill and care
- It will comply with applicable laws

8.2 Customer Warranties

8.2.1 Customer warrants that:

- It has authority to enter into this Agreement
- It will use the Service in accordance with this Agreement

- Customer Data does not infringe third-party rights
- It has obtained necessary consents for Personal Information

8.3 Disclaimer

8.3.1 EXCEPT AS EXPRESSLY PROVIDED:

- THE SERVICE IS PROVIDED "AS IS"
 - PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED
 - PROVIDER DOES NOT WARRANT THAT THE SERVICE WILL BE ERROR-FREE OR UNINTERRUPTED
-

9. Limitation of Liability

9.1 Exclusion of Consequential Damages

9.1.1 NEITHER PARTY SHALL BE LIABLE FOR:

- Indirect, incidental, special, or consequential damages
- Loss of profits, revenue, or business opportunities
- Loss of data (except as provided in Section 7)

9.2 Liability Cap

9.2.1 Each Party's total aggregate liability under this Agreement shall not exceed:

- The greater of: (a) Fees paid in the 12 months preceding the claim, or (b) R1,000,000

9.3 Exceptions

9.3.1 The limitations in this Section 9 do not apply to:

- Breach of confidentiality obligations
- Breach of data protection obligations
- Indemnification obligations
- Gross negligence or willful misconduct
- Death or personal injury caused by negligence
- Fraud or fraudulent misrepresentation
- Non-payment of Fees

10. Indemnification

10.1 Provider Indemnification

10.1.1 Provider shall defend, indemnify, and hold Customer harmless from third-party claims that the Service infringes a third party's Intellectual Property Rights.

10.1.2 Provider's obligations are conditional on:

- Customer providing prompt written notice
- Provider having sole control of defense and settlement
- Customer providing reasonable cooperation

10.1.3 Provider may, at its option:

- Obtain rights for Customer to continue using the Service
- Modify the Service to be non-infringing
- Replace the Service with a non-infringing alternative
- Terminate the affected Subscription with a pro-rata refund

10.2 Customer Indemnification

10.2.1 Customer shall defend, indemnify, and hold Provider harmless from third-party claims arising from:

- Customer's use of the Service in violation of this Agreement
- Customer Data infringing third-party rights
- Customer's violation of applicable laws

11. Term and Termination

11.1 Term

11.1.1 This Agreement commences on the Effective Date and continues until terminated.

11.1.2 Each Subscription has the term specified in the Order and automatically renews unless terminated.

11.2 Termination for Convenience

11.2.1 Either Party may terminate a Subscription at renewal by providing notice at least 60 days before the renewal date.

11.3 Termination for Cause

11.3.1 Either Party may terminate this Agreement immediately upon written notice if:

- The other Party materially breaches and fails to cure within 30 days of notice
- The other Party becomes insolvent, bankrupt, or enters liquidation
- Required by law or regulatory authority

11.4 Suspension

11.4.1 Provider may suspend access to the Service if:

- Customer fails to pay Fees when due (after 14 days' notice)
- Customer materially breaches this Agreement
- Required for security or legal compliance

11.4.2 Provider shall provide notice of suspension where practicable.

11.5 Effect of Termination

11.5.1 Upon termination:

- Customer's access to the Service shall cease
- Customer shall pay all outstanding Fees
- Customer may export Customer Data for 90 days
- Each Party shall return or destroy the other's Confidential Information

11.6 Survival

11.6.1 The following provisions survive termination: Definitions, Intellectual Property, Confidentiality, Data Protection (as applicable), Warranties and Disclaimers, Limitation of Liability, Indemnification, and General Provisions.

12. Dispute Resolution

12.1 Governing Law

12.1.1 This Agreement is governed by the laws of the Republic of South Africa.

12.2 Negotiation

12.2.1 Before initiating formal proceedings, the Parties shall attempt to resolve disputes through good-faith negotiation between designated representatives for 30 days.

12.3 Mediation

12.3.1 If negotiation fails, the Parties shall submit the dispute to mediation administered by the Arbitration Foundation of Southern Africa (AFSA).

12.3.2 Mediation shall take place in Johannesburg, South Africa.

12.4 Arbitration

12.4.1 If mediation fails, the dispute shall be resolved by arbitration under AFSA rules.

12.4.2 The arbitration shall:

- Be conducted by a single arbitrator
- Take place in Johannesburg, South Africa
- Be conducted in English
- Be confidential

12.5 Urgent Relief

12.5.1 Nothing prevents either Party from seeking urgent interim relief from a court of competent jurisdiction.

13. General Provisions

13.1 Entire Agreement

13.1.1 This Agreement, including its Schedules and Orders, constitutes the entire agreement between the Parties and supersedes all prior agreements relating to its subject matter.

13.2 Amendment

13.2.1 This Agreement may only be amended in writing signed by both Parties.

13.3 Assignment

13.3.1 Neither Party may assign this Agreement without the other's written consent, except:

- To an Affiliate (with notice)
- In connection with a merger, acquisition, or sale of substantially all assets (with notice)

13.4 Notices

13.4.1 Notices must be in writing and delivered to:

To Provider:

Masaphokati Technologies (Pty) Ltd

[Address]

Email: legal@siyabusa.com

To Customer:

[Customer Name]

[Address]

Email: [Email]

13.5 Force Majeure

13.5.1 Neither Party is liable for delays or failures due to Force Majeure Events.

13.5.2 The affected Party shall:

- Notify the other Party promptly
- Use reasonable efforts to mitigate the effects
- Resume performance as soon as practicable

13.5.3 If a Force Majeure Event continues for more than 60 days, either Party may terminate affected Services.

13.6 Severability

13.6.1 If any provision is held invalid, the remaining provisions continue in effect.

13.6.2 Invalid provisions shall be modified to the minimum extent necessary to make them valid.

13.7 Waiver

13.7.1 Failure to enforce any provision does not constitute a waiver.

13.7.2 Waivers must be in writing to be effective.

13.8 Relationship

13.8.1 The Parties are independent contractors.

13.8.2 Nothing creates an employment, partnership, joint venture, or agency relationship.

13.9 Third-Party Rights

13.9.1 Except as expressly provided, this Agreement does not create rights for third parties.

13.10 Counterparts

13.10.1 This Agreement may be executed in counterparts, each of which is an original.

13.10.2 Electronic signatures are valid and binding.

14. Schedules

The following Schedules are attached to and form part of this Agreement:

- **Schedule A:** Order Form Template
 - **Schedule B:** Data Processing Agreement
 - **Schedule C:** Service Level Agreement
-

Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Provider: Masaphokati Technologies (Pty) Ltd

Field	Value
Signature	
Name	
Title	
Date	

Customer: [Customer Legal Name]

Field	Value
Signature	
Name	
Title	
Date	

Schedule A: Order Form Template

Order Form

Field	Value
Order Number	ORD-[YEAR]-[NUMBER]
Customer	[Customer Name]
MSA Reference	MSA-[YEAR]-[NUMBER]
Order Date	[Date]
Start Date	[Date]

Subscription Details

Item	Description	Quantity	Unit Price	Total
SiyaBusa ERP [Plan]	Annual subscription	1	R[X]	R[X]
Additional Users	Per user/year	[X]	R[X]	R[X]
Subtotal				R[X]
VAT (15%)				R[X]
Total				R[X]

Subscription Term

Field	Value
Initial Term	[X] year(s)
Renewal	Automatic unless cancelled with 60 days' notice
Billing Cycle	Annual / Monthly
Payment Terms	Net 30 days

Modules Included

- Financial Accounting
- Inventory Management
- Sales & CRM
- HR & Payroll
- [Other modules]

Additional Terms

[Any order-specific terms]

Signatures

Provider: _____ Date: _____

Customer: _____ Date: _____

Schedule B: Data Processing Agreement

[Reference to Data Processing Agreement document]

See separate Data Processing Agreement document.

Schedule C: Service Level Agreement

[Reference to Service Level Agreement document]

See separate Service Level Agreement document.

Document Control

Version	Date	Changes
1.0	January 1, 2026	Initial release

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